

Court No. - 39

Case :- WRIT - C No. - 2940 of 2017

Petitioner :- Smt. Sudha Malviya

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Hridaya Narain Shukla,Rajeev Ratan Shukla

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Dilip Gupta,J.

Hon'ble Siddhartha Varma,J.

It is stated that though the petitioner had moved an application for providing electric connection for her residential house in Gopipur Dehat, Gyanpur, district Bhadohi, but thereafter it was not pursued by the petitioner and even the department did not provide any connection. In fact, it is stated that there are no electric poles nor electric lines to the house of the petitioner, but yet at the instance of respondent No.6 the department has issued a recovery certificate without even earlier providing any bill or notice.

Learned Standing Counsel appears for respondent Nos.1 and 2. Sri Narendra Kumar Tiwari appears for respondent Nos.3, 4 and 5. Learned counsel appearing for respondent Nos.3, 4 and 5 prays for and is granted two weeks time to seek instructions in the matter.

List this petition on 6 February 2017.

Till the next date of listing, no coercive steps shall be taken against the petitioner for recovery of the amount.

Order Date :- 20.1.2017

NSC

(Dilip Gupta,J.)

(Siddhartha Varma,J.)

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Hon'ble Dilip Gupta,J.

Hon'ble Siddhartha Varma,J.

List this petition on 6 March 2017.

Interim order, granted earlier, shall continue till the next date of listing.

Order Date :- 6.2.2017

Akram

(Dilip Gupta,J.)

(Siddhartha Varma,J.)

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Hon'ble Dilip Gupta, J.

Hon'ble Siddhartha Varma, J.

Counter affidavit filed today be kept on record. Rejoinder affidavit, if any, may be filed within three weeks.

List on 4 April 2017.

Interim order, if any, shall continue till the next date of listing.

Order Date :- 6.3.2017

praveen.

(Dilip Gupta, J.)

(Siddhartha Varma, J.)

Court No. - 37

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Respondent :- State Of U.P. And 5 Others

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Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Rajiv Lochan Mehrotra, J.

The petitioner is disputing the electricity bills on the ground that she has never been given any electricity connection nor does she reside in the village, and in the absence of any electricity connection, through any bill or any other method, realization of electricity consumption charges is absolutely arbitrary and therefore no recourse can be taken for recovering any such amount.

Counter affidavit has been filed on behalf of the respondents contending that the petitioner had already raised an objection on Janta Darshan day, whereupon an inquiry was made and it was found justified to issue the recovery certificate against the petitioner.

The petitioner filed this writ petition and a Division Bench of this Court on 20th January, 2017 restrained the taking of coercive steps against the petitioner while calling upon respondents to file a counter affidavit.

We have gone through the counter affidavit and in our considered opinion, and as rightly pointed out by the learned counsel for the respondents such a dispute can be raised by the petitioner in respect of such a bill before the competent authority in terms of Clause 6.5 of the Electricity Supply Code, 2005.

Consequently, in the event, the petitioner files any such application before the competent authority, in terms thereof, the said authority shall proceed to pass an appropriate order within six weeks of the filing of the said application. The application shall be filed within ten days from today.

We dispose of this writ petition with a direction to the said competent authority to pass appropriate orders within the period indicated herein above and till then no coercive action shall be taken against the petitioner.

The writ petition is disposed of with the aforesaid observations.

Order Date :- 28.7.2017, BKM/-